

CONTRACT AGREEMENT

THIS CONTRACT AGREEMENT has an effective date of [insert date of LOA or date of NOA if no LOA issued]

BETWEEN

(1) **Diriyah Gate Company Limited**, a company registered and incorporated in the Kingdom of Saudi Arabia, under commercial registration number 1010648801 and whose registered office is at P.O Box Number 8500, Prince Sattam Bin Abdulaziz Road, Al Khuzama District, Riyadh 12572, Kingdom of Saudi Arabia (the “**Employer**”) which expression shall include its successors, assignees and transferees; and

(2) **Al Ayuni Investment & Contracting Company**, a company registered and incorporated in Kingdom of Saudi Arabia, under commercial registration number 1010066115, whose registered office address is situated at First Floor, Alia Plaza Intersection of Al-Thumama Road with Abi Bakr Assiddiq Road, P. O. Box 4727, Riyadh 11412 Kingdom of Saudi Arabia (the “**Contractor**”).

Each a “**Party**” and collectively referred to as the “**Parties**” in this Contract.

WHEREAS:

- (A) The Employer is developing the “**DGII Infrastructure Package I**”.
- (B) The Employer requires the Contractor to carry out and complete the works known as the design (in relation to the Contractor Design Works) manufacture, supply, delivery, construction, installation, erection, commissioning and testing of the Works.
- (C) The Contractor has agreed to carry out and complete the Works and comply with all the obligations of the Contractor as set out and in accordance with the terms of the Contract.

THE PARTIES HEREBY AGREE AS FOLLOWS:

- 1. In this Contract Agreement, words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract.
- 2. The following documents are to be read and construed as part of the Contract:
 - (a) the Contract Agreement;
 - (b) the Conditions of Contract;
 - (c) the Contract Data;
 - (d) the Specification;
 - (e) the Drawings;
 - (f) Schedule 1: Bill of Quantities;
 - (g) Schedule 2: Daywork Schedule;
 - (h) Schedule 3: Insurance;

- (i) Schedule 4: Site;
 - (j) Schedule 5: Project Schedule;
 - (k) Schedule 6: Testing;
 - (l) Schedule 7: Schedule of Payments;
 - (m) Schedule 8: Forms of Security Document and Agreements;
 - (n) Schedule 9: Health & Safety KPIs;
 - (o) Schedule 10: Not Used;
 - (p) Schedule 11: Local Content Requirements
 - (q) any other documents forming part of the Contract (excluding the Contractor's Proposal); and
 - (r) the Contractor's Proposal.
3. In consideration of the payments to be made by the Employer to the Contractor under the terms of the Contract, the Contractor hereby covenants with the Employer to execute and complete the Works and remedy any defects in the Works, and comply with all the obligations of the Contractor under the Contract.
4. The Employer agrees to pay the Contractor, in consideration of the performance and completion of the Works, the remedying of any defects in the Works and the compliance by the Contractor with all of its obligations under this Contract, the Accepted Contract Amount, or such other sum as may be agreed between the Parties and become payable under the provisions of the Contract, at the times and in the manner prescribed by the Contract.

IN WITNESS whereof the Parties hereto have caused the Contract to be executed the day and year below written.

For and on behalf of **Diriyah Gate Company Limited**

Name:	Gerard J. Inzerillo	Company Stamp	
Title:	Group Chief Executive Officer		
Signature:	[●]		
Date:	[●]		
Telephone:	+966 9200 02622	Facsimile:	N/A

For and on behalf of Al-Ayuni Investment & Contracting Company			
Name:	Waleed Hamad Albathe	Company Stamp	
Title:	Chief Executive Officer		
Signature:	[●]		
Date:	[●]		
Telephone:	+966 11 2405000	Facsimile:	+966 11 2405040